

Trial Clerk Discovery Research

November 2022

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Table of Contents

1	Overview
4	Key Insights
23	Next Steps

Overview

The United States Tax Court (USTC) is a federal trial court that specializes in adjudicating disputes over federal income tax prior to formal Internal Revenue Service (IRS) tax assessments. DAWSON is the case management system that is currently utilized by court users to perform their day to day duties. DAWSON replaced the legacy system, Blackstone.

From October 3 – 21, 2022, the UX team used a human-centered design framework to better understand the experiences of Trial Clerks in regard to the Trial Session Copy page, minute sheets, consolidated cases and overall process during trial sessions and highlighted key insights to inform future opportunities for improvement.

Purpose

The purpose of this research is to engage with USTC Trial Clerks to better understand their experiences with consolidation, the Session Copy page and their overall process regarding trial sessions. Insights discovered through this research will help us identify opportunities for improvement and inform 1 Epic with 4 associated stories at this time which outline the following objectives:

[EPIC] 3820: “Consolidation” of two or more cases – User Research

- Understand user workflows and usability concerns related to consolidation of cases

Story 9611: Session Copy – Consolidated Case/Trial Status Filtering Enhancement

- Consolidate member cases into groups to enhance usability of the Session Copy Page

Story 9565: Trial Clerk – Minute Sheet Entry Form

- Identify pain points on the Minute Sheet Entry form to inform design

Story 9674: Session Copy Update – Add Trial Session Assignment Info to Session Copy

- Include additional information that helps users when viewing Session Copy content

Story 9445: UX Design/Research

- Identify pain points for consolidation across all associated users and flows in DAWSON

Research Goals

The overall purpose of this research is as follows:

- Understand and document the unique perspectives, needs and experiences of Trial Clerks as related to the Session Copy page and associated user flows
- Define key moments in the user’s experiences to identify opportunities to improve the Session Copy page and associated user flows
- Create an enhanced user experience across DAWSON of the Session Copy page/printable pdf and associated user flows

Approach

The following research method was utilized in order to gain an understanding of the user base:

Method

- 1:1 non-standardized interviews – In depth interviews to understand users’ challenges, needs and experiences using DAWSON for consolidation
- Duration of 45-60 minutes
- Scheduled remotely via Zoom

Engagement Groups

In order to gather diverse perspectives from people that utilize DAWSON, we included input from users who use DAWSON frequently and have extensive experience working within trial sessions. The experiences, pain points, bright spots, and other insights of these users are the core of this report and will serve as the starting point for future enhancements to DAWSON.

Throughout this research process, we engaged with the following user types:

- **Trial Clerks** – people who assist the CA and Judge with coordination of certain support functions integral to the effective operations of Trial Sessions
- **Chambers Administrators (CA)** – people who assist the Judge with coordination of certain support functions integral to the effective operations of the Judge’s Chambers; approximately 30% of CAs function as both a CA and a Trial Clerk

User Type Breakdown

4 users participated in an interview:

- 1 Trial Clerk
- 2 Trial Clerk/Chambers Administrator hybrid role
- 1 Administrative and Case Services Counsel (former Trial Clerk/CA)

225

Data points represent feedback gathered directly from the end users and thus most often take the form of direct quotes. The content of those quotes and experiences are considered qualitative data, but can be quantified as data points.

13

Key insights uncover context and illustrate pain points and bright spots through subjective analysis. They help us identify opportunities about the user experience that inspire actionable solutions.

32

Themes identify a commonality or pattern between a group of data points. They describe what is happening from an objective standpoint.



Synthesis

The in-depth interviews provided qualitative raw data in the form of first-hand accounts and quotes directly from the DAWSON user community. Through an affinity mapping process, raw data was grouped to identify themes and uncover insights that point to opportunities to improve DAWSON and quantify the data. This process enables us to analyze the data from broad higher level themes while still allowing us to drill down to the detailed data points.

Opportunities

Opportunities are developed for each insight. These are phrased as “How might we” questions and used as a method to jump-start thinking about ways in which we can address the users’ identified pain points and challenges.

Key Insights

1

Displaying the 'Assignments' details from the Session Info page on the Session Copy page would be helpful

- Trial Clerks print copies for parties and employees who have a need to know the assigned court staff
- Users are seeking information (Judge, Trial Clerk, Court Reporter, IRS Calendar Admin) that currently exists only on the Session Info page

2

Session Copy notes are not formatted, making them difficult to read easily and call attention to items

- Session Copy notes are displayed in one continuous block of text, which makes them hard to read
- If Trial Clerks want to call something out in the notes (e.g. dates or separate notes), there's no easy way to do it

3

When printing the Session Copy pdf, the option to exclude notes meets Trial Clerks' need

- Printed copies provided to the parties, Court Reporter, LITC, etc. do not need to include Judge/Trial Clerk notes
- The modal that is displayed after "Print" is clicked, is effective in addressing this pain point

4

Trial Clerks do not use trial status filters on the Session Copy page

- Trial status filters are more for the Judge's use

5

Sorting order is not clear on the printed Session Copy pdf

- A sort order indicator on the printed pdf would be helpful to clarify the order

6

Opinions were split on the need to see Judge's notes

- Reason for: to help a Trial Clerk prep for trial –knowing the context can be helpful
- Reason against: Judge's notes typically deal with legality and may not be relevant to Trial Clerks

7

Hybrid roles may have two DAWSON logins with different views of the Session Copy page

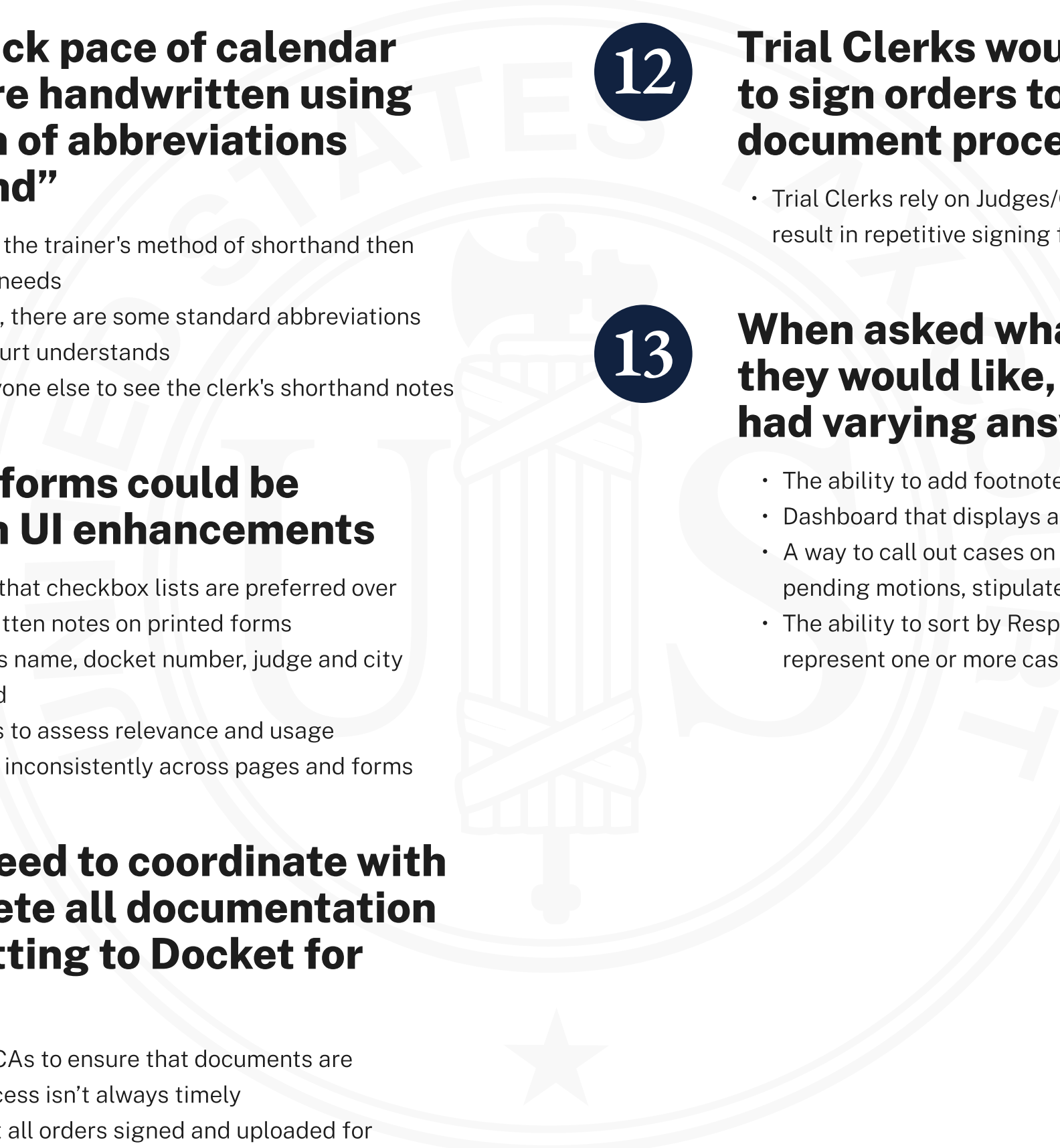
- Trial Clerks tend to log in as a CA because it grants them access to the Judge's notes

8

Judges call cases from the sorted calendar by docket number, counsel or complexity

- Cases are typically called by ascending docket number, with consolidated groups called by the lead case
- Consolidation is not a factor in prioritization during calendar call
- Cases with a complicated issue may be moved to the end to be considerate of other attorneys' time
- Some Judges may prefer to prioritize cases that have an attorney to be considerate of attorneys' time

Key Insights

- 
- 9** **Due to the quick pace of calendar calls, notes are handwritten using a combination of abbreviations and “shorthand”**
- Clerks are trained with the trainer's method of shorthand then modify it for their own needs
 - While shorthand varies, there are some standard abbreviations that everyone at the court understands
 - It's not common for anyone else to see the clerk's shorthand notes
- 10** **Minute sheet forms could be improved with UI enhancements**
- Trial Clerks expressed that checkbox lists are preferred over dropdowns for handwritten notes on printed forms
 - Info such as petitioner's name, docket number, judge and city could be autopopulated
 - Re-evaluate form fields to assess relevance and usage
 - Free text fields behave inconsistently across pages and forms
- 11** **Trial Clerks need to coordinate with CAs to complete all documentation before submitting to Docket for processing**
- Trial Clerks work with CAs to ensure that documents are completed but the process isn't always timely
 - Trial Clerks want to get all orders signed and uploaded for processing so the current work doesn't roll over into their next trial session
- 12** **Trial Clerks would like authority to sign orders to expedite document process**
- Trial Clerks rely on Judges/CAs to sign orders, which can result in repetitive signing for edits
- 13** **When asked what features they would like, Trial Clerks had varying answers**
- The ability to add footnotes in orders
 - Dashboard that displays assigned trial sessions
 - A way to call out cases on the Session Copy page that have pending motions, stipulated decisions, etc.
 - The ability to sort by Respondent Counsel, who may represent one or more cases, in the event of counsel's death

Displaying the ‘Assignments’ details from the Session Info page on the Session Copy page would be helpful

Trial Clerks would typically print out the Session Info and/or Session Copy pages to provide to the parties and court employees. The Session Info page, provided to parties, includes the assigned court staff for the trial session but not the Judge’s notes. Parties and judges may want to order transcripts from the Court Reporter so this info is relevant. The Court Reporter may also receive the Session Copy printout to see the Judge’s notes to get an idea of motions, set trials etc. It would help Trial Clerks to have the assignment details displayed on the Session Copy page to keep track of their trial sessions and alleviate the need to print both pages to hand out.

Trial Clerks print copies for parties and employees who have a need to know the assigned court staff

Parties and employees like the Court Reporter, Trial Clerk, Judge, etc. have different reasons for needing to know the assigned court staff. Reasons include ordering transcripts, knowing the presiding judge, and keeping track of trial sessions. Sometimes, the Court Reporter may be given the Session Copy page with the Judge’s notes. It would be beneficial for the Session Copy page to include the assigned court staff for when the Trial Clerk chooses to print and hand out at trial sessions.

“ The Judge and I are the only ones that get to see these notes, but...they would all get the all session info where it would only have the case names.

User 003

“ ...they would know who the court reporter was if they want to order transcripts.

User 004

“ Normally the Trial Clerk would print about 10 calendars...we’d put them on the counsel tables like 5 each for the parties to review if they wanted to see where they were in line to be called...we would just print with no notes for the parties because we won’t want the parties to see our notes, but for ourselves and...the Court Reporter...I would give them a copy with the notes on it so they know where there’s motions or trials set.

User 005

Users are seeking information (Judge, Trial Clerk, Court Reporter, IRS Calendar Admin) that currently exists only on the Session Info page

Trial Clerks often need to provide additional information that exists under the “Assignments” card in the Session Information Page to the parties in the trial. Although phone numbers are not necessarily needed, they do need access to the names of the Judge, Court Reporter, Trial Clerk, etc. Court employees who have copies of the Session Copy page need this information as well.

“ ...when you go to view all session info there’s a part that has like the IRS administrator, Court Reporter, Judge and Trial Clerk that all be up there under assignments, that might be helpful.

User 003

“ It would be helpful if there was a space for the Court Reporter name to populate [on Session Copy page]. That’s also something that just goes on our minute sheets.

User 004

“ Current Trial Clerk print view of the session is good and should be on all print views: Courthouse name and address, Judge, Trial Clerk, Court Reporter, IRS Calendar Administrator, contact info for IRS Calendar Admin.”

User 005

Opportunities

- **How might we** make it easier to access the court staff assignment details on the Session Copy page?

Session Copy notes are not formatted, making them difficult to read easily and call attention to items

Currently the Session copy notes do not allow for formatting. This means that the notes are displayed as one large block of text that runs together despite the user's effort to add paragraph breaks, indentations, etc. As a result, the text becomes jumbled and difficult to read. It is particularly challenging to find specific and important details that end up getting buried in the text, such as dates. Thus, Trial Clerks voiced that they wished notes could be formatted in order to make it more scannable and easier to highlight important information.

Session Copy notes are displayed in one continuous block of text, which makes them hard to read

Trial Clerks voiced their frustration with the lack of formatting for the Session Copy notes. The inability to format these notes means there are no paragraph breaks, text styling, etc. which makes it hard to read.

“The notes formatting just drives me crazy, I wish I could format it better. I hate how it's jumbled together, it's just hard to read.

User 004

“I mean the notes, it would be nice if you could do a return and set it up a little cleaner. Like have the dates on the left, it's just hard to read sometimes everything runs together.

User 003

If Trial Clerks want to call something out in the notes (e.g. dates or separate notes), there's no easy way to do it

The lack of formatting also makes it difficult for Trial Clerks to flag information that may be important to highlight such as dates. This means that this information is buried in the dense text and may take longer to find or can potentially be missed.

“I would have handtyped some notes, so the things that I would be having in there is motions. As a Trial Clerk, and even a Trial Clerk CA, because I need to make sure this is clean for my Judge, what open motions does the Judge need to act on at this trial session. So I would have those clearly listed out one on top of each other and maybe even a space in between them so I would want space on my paper dealing with a motion. [wants formatted notes].

User 005

“...when I type in a note... I would want it to show up like this on my page, you know what I mean? Like the spacing, [the formatting], like the list like that. But when you hit save it just all jumbles together.

User 004

Opportunities

- **How might we** enhance the scannability of the notes?
- **How might we** make it easier for users to easily identify important information?

When printing the Session Copy pdf, the option to exclude notes meets Trial Clerks' need

Trial Clerks noted that it is important to them to have the option to print either with or without the Judge's notes and that the lack of this option presented a pain point to them. The copy with the notes would be provided to the Judge, and sometimes to themselves and the Court Reporter. However, they also needed the option to provide a copy without the Judge's notes for the parties, Court Reporter, IRS Counsel, and the Low Income Taxpayer Clinics (LITC). We presented the Trial Clerks with a design that offered the option to select whether or not to include notes when printing the Session Copy page pdf. Clerks unanimously stated that the design would resolve this pain point.

Printed copies provided to the parties, Court Reporter, LITC, etc. do not need to include Judge/Trial Clerk notes

According to Trial Clerks, there is currently no need for the parties, Court Reporter and LITC to view the Judge's and Trial Clerk's notes. Although some clerks noted that occasionally a Court Reporter may need a copy with notes, this is not the norm. Typically, these entities are only interested in what is going on with the case itself, and not any internal court notes or discussions.

“ The Judge and I are the only ones that get to see these notes, but Court Reporter, and the IRS counsel, and the LITC (low income taxpayer clinics), they would all get the All Session Info where it would only have the case names.

User 003

“ So there's normally a version where we would just print with no notes for the parties because we won't want the parties to see our notes, but for ourselves and normally I would also give it to the Court Reporter so the Court Reporter has an idea of what's going on, I would give them a copy with the notes on it so they know where there's motions or trials set.

User 005

The modal that is displayed after “Print” is clicked, is effective in addressing this pain point

After viewing a mockup of a modal designed to give Trial Clerks a choice on whether or not to include the Judge's notes in the Session Copy pdf, Trial Clerks noted that the modal was effective in meeting this need. Thus, the design was validated.

“ I think that's a good thing because sometimes if I would want to print a copy for myself and obviously you have to print a copy for the Court Reporter and the Court Reporter doesn't need my notes.

User 004

“ That would be great if we could print that.

User 003

“ Yeah I like it, I could see using that as a different, like a supplement to what I also do.

User 002

Opportunities

- **How might we** empower Trial Clerks to print the Session Copy with or without Judge's notes?

Trial Clerks do not use trial status filters on the Session Copy page

Trial clerks noted that they were not likely to use the trial status filters.

Trial status filters are more for the Judge's use

Trial Clerks stated that the status filters are primarily for the Judge's use. These are not filters that the Trial Clerk would likely use and therefore they do not find it useful to have on their view.

“ Probably wouldn't need the filters up on the top, but I would want to know the total shown. I don't [use the filters] at the trial session.

User 005

“ I usually don't use any of this stuff the show cases by trial status [filters] and this stuff over here like set for trial, dismiss, continue I never use any of that.

User 002

“ It wouldn't be useful to me. I could see a Judge doing that.

User 004

Opportunities

- **How might we** provide Trial Clerks a way to hide or display trial status filters?

Sorting order is not clear on the printed Session Copy pdf

Trial Clerks tend to keep the default sorting of docket numbers because cases are typically called by docket number from oldest to newest.

Some Judges may prioritize cases that have counsel as a courtesy to try to get them out of the trial session as quickly as possible. This is one reason why some will sort by petitioner counsel. When sorting is not the default, a visual indicator would clarify the order, else it can be confusing and unclear.

A sort order indicator on the printed pdf would be helpful to clarify the order

Trial Clerks noted it would be helpful to have a sort order indicator on the printed pdf to clearly see how the cases are being sorted (ascending, descending etc.).

“ It’s not [sorted] by docket, it is not clear to me how it’s sorted.
User 004

Opportunities

- How might we make the sorting order clear on the printed pdf?

Opinions were split on the need to see Judge's notes

Discussions with Trial Clerks resulted in a split view on whether or not seeing the Judge's notes on the Session Copy page would be helpful to them. Some stated that more context is always better while others noted that the information within those notes is beyond the scope of their duties and therefore not relevant to them.

Reason for: to help a Trial Clerk prep for trial – knowing the context can be helpful

It would be helpful for some Trial Clerks to be able to view the Judge's notes as this would allow them to better prepare for upcoming trials. Sometimes, it is helpful for them to understand what the Judge is planning or thinking for a particular case, which may be in their notes. It helps with context gathering.

“ If I could see maybe the Judge's notes it would help me maybe prepare as I met with them. Or sometimes we don't meet because our schedules don't align it would be cool to see what they have written down.

User 002

“ [Judge's notes needed] maybe in a capacity that, like, I'm not the CA, they might have had some conference calls or something and maybe know more of what's going on with the case, then I would know, because I'm just walking in as a Trial Clerk capacity. I'm just like walking into it for calendar call. So they might know more of what's going on than I do. So just for those kinds of reasons.”

User 004

“ I might print them [Judge's notes] for my own convenience so I can recognize what's happening.

User 002

Reason against: Judge's notes typically deal with legality and may not be relevant to Trial Clerks

Some Trial Clerks state they were not interested in seeing the Judge's notes because they felt that they were not relevant to their tasks. The Judge's notes tend to be filled with more legal aspects that are beyond the scope of a Trial Clerk, thus they would not need access to them.

“ My job is to make sure if there's any pending motions they're addressed, if there's any filings that they're addressed, the actual legal notes that the Judge may be taking they don't apply to me.

User 002

“ No, so the Judge's notes and the Trial Clerks notes are quite different because they're looking at different things. So the Judge is looking at more legal things, like what are the notices of deficiencies, who's conceded, what penalties or what amounts. The Trial Clerk is looking for open motions and how the Judge has acted, exhibits that were filed at a trial... they're looking at completely different things.

User 005

Opportunities

- **How might we** accommodate Trial Clerks' need to access the Judge's notes?

Hybrid roles may have two DAWSON logins with different views of the Session Copy page

There are some Trial Clerks who also serve as Chambers Administrators (CAs). Those who have this dual role typically have two separate logins to access DAWSON. Each user type has different views within DAWSON, with the CA login granting them access to the Judge's notes.

Trial clerks tend to log in as a CA because it grants them access to the Judge's notes

Trial Clerks who have dual roles noted that they usually will login as a CA because it grants them access to Judge's notes which they would not otherwise have. Thus, for many of these roles, the Trial Clerk DAWSON login is not used, nor necessary. It may be more efficient to combine these logins into one, CA-level DAWSON account.

“ I'm only logged in as a chambers, I have access to Judge's notes and everything, I don't have two logins [never log in as Trial Clerk?] No. I only have one login for DAWSON.

User 003

“ It was probably beneficial to stay in logged in as a CA because I obviously had other work coming in for my Judge while I was on these trial sessions. So I could easily see, like, if I'm sitting during a trial, and I had, you know, like, a lot of times I multitask during trials, I'll do stuff while I'm sitting in trial. So it's like, if I had stuff come in for my Judge, I could do work while I'm sitting at trial for another Judge. So it was more beneficial, probably, for me to stay logged in as a CA.

User 004

Opportunities

- How might we improve account management for Trial Clerk/CA hybrid roles?

Judges call cases from the sorted calendar by docket number, counsel or complexity

There are a few different ways Judges may call cases from the calendar, the most common being by docket number from oldest to newest. If there is a consolidated group, that group is called by its lead case wherever it falls in the queue. Trial Clerks indicated that Judges may call complex cases last as they will likely take the longest, thus allowing other attorneys with less complex cases to move along quicker. Judges may also prioritize cases with attorneys for the same reason.

Cases are typically called by ascending docket number, with consolidated groups called by the lead case

It is typical for Judges to call cases from oldest to newest. Consolidated cases are called together, with the Lead case determining their position in the queue.

“ So when we first call the cases we’ll go through all the docket numbers.

User 002

“ We’ll call all the consolidated cases at the same time. We usually will do it by the lead case number... it’s usually the oldest case that’s pending and that will technically be the lead case so wherever the lead case falls on our docket sheet, when we call the calendar we usually do it by docket number going from the oldest case to the newest case, wherever the lead case falls on the calendar is usually where we’ll call the consolidated cases.

User 002

“ Instead of calling eight individual cases, if there was a consolidated, you just call them once.

User 004

Consolidation is not a factor in prioritization during calendar call

There are a few reasons why cases may be prioritized during trial but consolidation is not one of them. Judges may prefer to prioritize cases that have an attorney since these may go quicker.

“ We won’t necessarily call them first or last because they’re consolidated.

User 002

Cases with a complicated issue may be moved to the end to be considerate of other attorneys' time

There are instances where a case may be complex and require more time to hear. When this happens, Judges may prefer to respect the time of other attorneys waiting on their cases and move the complex ones towards the end. This allows the Judge to get the other attorneys in and out as efficiently as possible.

“ There may be a different reason that we call them last, maybe it's a more complicated issue and it's the only case with substance so we'll push that to the end.

User 002

Some Judges may prefer to prioritize cases that have an attorney to be considerate of attorneys' time

For cases with counsel, a Judge may prioritize and call them first so long as the case is not complex. This may help expedite the trial session since petitioners without counsel tend to need more assistance during trial. Another reason is that Judges want to be considerate of attorneys' time.

“ So if there's other attorneys for simple issues they don't have to sit around for an hour while we discuss a more complicated issue, but that's not because it's a consolidated case that's because of the substance of the case.

User 002

“ I only ever went from oldest to newest ever unless a Judge specifically wanted to call cases where an attorney is going first.

User 004

Opportunities

- **How might we** ensure that a Judge's preference for prioritization of cases during calendar call align with the sorting functionality on the Session Copy page?

Due to the quick pace of calendar calls, notes are handwritten using a combination of abbreviations and “shorthand”

Trial Clerks stated that calendar calls tend to run quickly so they do not often have time to note everything down in detail. As a result, clerks are handwriting notes, as this is faster than typing, and are utilizing a combination of unofficial shorthand and abbreviations. Some of the shorthand used is common among the clerks as they likely learned it from their trainers. Other shorthand and abbreviations may be unique to a particular clerk. Trial Clerks stated that universal shorthand would likely not be necessary since they're typically the only one who look at their notes.

Clerks are trained with the trainer's method of shorthand then modify it for their own needs

Most Trial Clerks indicated that they learned their current shorthand from their training and have adapted it to their specific needs over time.

“ The way that Trial Clerks are trained, it's very difficult to create even a uniform way of doing things... because even amongst the other current CA Trial Clerks that have come after me, the way that some of them were trained with how I was trained are very different...”

User 005

“ Whoever trained me, kind of taught me a shorthand method, which is, I feel like what was fairly used in the Trial Clerk's office at the time, and I had, since then, I probably trained myself, I don't know, like, more than five, probably like five to eight Trial Clerks and I taught them the same shorthand, so I don't know like, what I don't know what they do now. Because everyone in the Trial Clerk's office is new, like most of the people I trained now are either CA's or have passed on to a new job.

User 004

“ I use my own, so I've created my own shorthand probably based off of the way I was trained for some things.

User 005

While shorthand varies, there are some standard abbreviations that everyone at the court understands

Trial Clerks mentioned that despite there being differences in note-taking shorthand, there are some standard abbreviations used throughout the court which would be universally understood.

“ For the most part like the exhibit numbers are standard for the court on how we note those.

User 005

“ For some things there's standards shorthand like motion to dismiss for lack of prosecution is frequently referred to in the court as MTDLOP, that's pretty standard and I'm assuming pretty much anyone working in the tax court would know what that means.

User 002

It's not common for anyone else to see the clerk's shorthand notes

Except for extreme circumstances, such as the death of a clerk, Trial Clerks indicated that there is no real need for anyone to access their personal shorthand notes. Thus, having a standard note-taking system may not be necessary.

“ [Would anyone ever need to read your shorthand?] No, because it's never I guess it's not that timely. I guess it's like, it would only be if there was like a tragedy, you know what I mean? So I don't think it would be that necessary. Granted, yeah, I mean, I guess if something horrible happened, I could like if someone did something similar to what I did, I could understand it.

User 004

Opportunities

- **How might we** use this insight to better inform process improvements?

Minute sheet forms could be improved with UI enhancements

There are two types of minute sheets used by Trial Clerks – “trial” and “non-trial”. Notes taken during calendar call and trial are transcribed into these forms. Once a form is complete, it is saved as a non-editable pdf, then submitted to Docket for processing along with any other documents. Overall, the minute sheets were reported to be pretty clear and easy to fill out. However, there were a few pain points worth noting. Clerks stated that there is currently a lot of information on the minute sheets that is manually entered but would be nice if it was autopopulated since this is information that’s in DAWSON. They also noted that some UI changes could be made to reduce the amount of time it takes to complete the forms as well as remove unnecessary fields.

Trial Clerks expressed that checkbox lists are preferred over dropdowns for handwritten notes on printed forms

Currently, there are dropboxes in the minute sheets which clerks can use in the digital form. However, Trial Clerks may print these minute sheets and quickly fill them out with handwritten notes during the trial session, which means those dropbox lists are not displayed. Thus, it was mentioned that having checkbox lists that could easily be marked on paper or checked digitally would make for faster and more efficient note-taking.

“The way you did the stamp technology, if there was like a box where we could just check things. If there was like a list...I guess more important things are like if we continue the case, the jurisdiction retained stip decision due, that’s like a big thing that happens or Judge retains jurisdiction, or decision documents due that happens in a lot of cases. If there was checkmarks of that we could just check ‘case is jurisdiction retained’, check ‘decision document due’ and maybe like a box where we could enter the date when it was due.

User 004

Info such as petitioner's name, docket number, judge and city could be autopopulated

Trial Clerks stated that most of the information at the top of the minute sheet forms are in DAWSON. This information could be autopopulated to make filling out the forms more efficient and less repetitive.

“For sure, absolutely [would like to autopopulate] petitioner’s name so we wouldn’t have to retype it and make sure we got it perfect, autopopulate here, docket numbers autopopulate there, the Judge autopopulate, counsel autopopulate, but still have the option to delete.

User 005

“If we didn’t have to type in the caption, the docket number because it would already be in it...where the city was already. I know too we have to pick whatever Judge it is, if they could automate that. Or even if there was like a drop down that we could pick what Judge for the session. We’d still have to type in the counsel or if they didn’t appear.

User 004

Re-evaluate form fields to assess relevance and usage

From discussions with Trial Clerks, it was noted that the minute sheets have not been updated in quite a while. This means that although processes may have changed –primarily moving from paper to digital via DAWSON –the minute sheet forms have not been evaluated and adapted to current practices. As a result, some clerks indicated that there may be areas of the form that are no longer in use or may not be relevant anymore and should be reconsidered.

“ [minute sheet non-trial] I don’t use this [Resp. ___ Mot. To Dismiss/Lack of Pros. boxes]
User 002

“ How much of this form is actually used? Like is any of this box still used? Probably not? Does anyone know what this means? Probably not. Honestly this entire box probably can be removed. I’m not sure that case services writes in this box anymore...or the Trial Clerk supervisors would make a note...but I’m not sure that they do that anymore.
User 005

Free text fields behave inconsistently across pages and forms

While evaluating the two types of minute sheets (i.e. trial and non-trial), it was noted that text fields behaved differently across both types but within each as well. For instance, some text fields allow text to continue beyond their boundary while others constrain the text to its boundary. Some text fields also do not allow Trial Clerks to hit return/enter to jump to the next field, requiring them to manually click on each field to continue their note. Other fields, however, do allow for this behavior. Overall it is inconsistent and presents a frustrating experience.

“ Mostly up here [text box for actions and filings], it doesn’t go on to the second line automatically and I hate that so I always have to be like okay how much of this do I copy...paste this...okay I think this might fit up here. [guessing how much she can copy paste]. So if you have a very long motion or if you need to put in how it was dealt with, that might go on to the second line...it’s super frustrating that it doesn’t automatically go to the second line.
User 005

Opportunities

- How might we improve the usability of the minute sheet forms?

Trial Clerks need to coordinate with CAs to complete all documentation before submitting to Docket for processing

Trial Clerks and CAs typically work together to ensure that orders are drafted correctly and signed by the Judge. When submitting to Docket for processing, all documentation, including minute sheets, must be complete or it won't be processed. This delay in adding documentation to the docket record may affect court processes for cases in the trial session.

Trial Clerks work with CAs to ensure that documents are completed but the process isn't always timely

The CA will typically send all needed documents to the Trial Clerk who will upload it to Docket for processing via DAWSON. When CAs do not draft/sign orders in a prompt manner, the documentation upload process is delayed.

“ Sometimes CAs don't respond quickly for signature on documents and some Judges aren't looking in DAWSON frequently for notes to them and some CAs might not also be telling the Judge hey this needs to be signed, some of them assume that the Judge knows.

User 005

“ In order for docket to process something from a session, all of the documents have to be there. So if I just submit the minutes, in my minutes I might make a notation that says like 'see order'. I know that the CA might be working on an order to tell the parties that a status report is due in 30 days, if I note that on the minutes, and the order is not done or the order is not signed by the Judge, they won't process the minutes without the orders.

User 002

Trial Clerks want to get all orders signed and uploaded for processing so the current work doesn't roll over into their next trial session

Trial Clerks often have back to back trial sessions. If they are not able to get all orders signed and sent for processing in a timely manner, it can open up the possibility of having to process two different trials at once. Regardless of how long it takes to process the current documentation, the clerk will need to begin processing documents for their next trial session. Thus, if there is an overlap due to a delay in obtaining signed orders, it can become difficult to keep track of both trials at the same time. To prevent overlap, clerks would prefer if they could have everything ready for processing before they start their next trial session.

“ While you are at the trial session your goal as the Trial Clerk is always to get everything signed before you leave that trial session. You don't want anything spilling into the next week because you have another trial session next week with a whole another set of orders to do. So part of the delay, and some of this is internal training issues, because they don't stamp, most Judges don't add their signature to orders, so having to send each order to a CA to for a trial session to sign for them is cumbersome.

User 005

Opportunities

- **How might we** create a more efficient task flow between Trial Clerks and Judges/CAs?

Trial Clerks would like authority to sign orders to expedite document process

Current policy does not allow Trial Clerks to sign orders on behalf of a Judge. As a result, Trial Clerks must rely on the Judge or CA for signatures in order to send to Docket for processing. If a Trial Clerk finds an issue, such as a punctuation error, after the order has been signed and corrects it, the signature is automatically removed. Consequently, the Trial Clerk will have the Judge or CA sign the order again, which may not always happen in a timely manner. This causes a delay in processing since the Trial Clerk is unable to send anything to Docket until all pertinent documentation is collected and sent together. Thus, Trial Clerks would like the ability to sign orders for Judges in circumstances where there may be a simple edit.

Trial Clerks rely on Judges/CAs to sign orders, which can result in repetitive signing for edits

Due to the reliance on the Judge/CA for signatures on orders, fixing grammatical errors or typos require that these orders are signed again, which can delay documentation getting sent to Docket for processing.

“ Sometimes we need to make a very small adjustment, so sometimes the Judge will sign it and we’re looking through it again and we’re like oh that comma shouldn’t be there or we’re missing a period at the end of the sentence, if we go in and edit it and we add that period it takes the Judge’s signature off so we have to resend it to get their signature again and it’s very bothersome, because it’s a very small change, so for that it would be nice if we just had our own signature.

User 002

“ It takes away a layer because right now if I trial clerk for a different Judge, I have to write an order, I have to send a message to the CA and then wait for them to sign the order, send it back to me, and then I have to send it to Docket. Whereas if I had signature authority and the Judge was okay with me signing his name, I could do the order, sign his name, and send it to Docket as soon as the case is done, it can happen any time after that.

User 004

Opportunities

- **How might we** create a more efficient task flow for signing documents?

When asked what features they would like, Trial Clerks had varying answers

The final question in the interview probed desires for a feature in DAWSON that does not currently exist. Trial Clerks provided answers that mostly dealt with workflows. The answers here are not reflected in any of the previous insights.

The ability to add footnotes in orders

This is a pain point not only for Trial Clerks but for other users who draft orders.

“ Are they actually going to do something as far as being able to do footnotes in the order as well?

User 004

“ A better order generator that actually did footnotes.

User 005

Dashboard that displays assigned trial sessions

Due to the fact that Trial Clerks typically have back to back multiple trial sessions, a desire to view all assigned sessions would help them get organized.

“ When trial clerks log in, they are taken to their messages. It would be nice if they also had a dashboard with their assigned trial sessions.

User 005

A way to filter Trial Clerks in instances where one has left or changed roles

There are instances where Trial Clerks leave their positions. Thus, knowing which trial sessions they were assigned to would help with reassignment.

“ In the trial session section, there is no filter for trial clerk. While this may only matter to a few of us, it would be helpful to filter which trial clerks are assigned to which sessions. We have had trial clerks leave the court with short notice and being able to find their sessions and reassign them quickly will be very helpful.

User 002

A way to call out cases on the Session Copy page that have pending motions, stipulated decisions, etc.

There are certain documents that are of concern to Trial Clerks that require them to look deeper. These documents could affect whether a case goes to trial or not. Knowing if a case has a pending item would help clerks better prepare for a trial session.

“ If there was maybe an icon for a pending motion that might be helpful but even if there wasn't i still would open it up anyways because I still want to know why there isn't one, because if there's no pending motion, why is it still on docket, is it going on trial? So it might help flag it to prepare me but regardless I would still have to open the case.

User 002

The ability to sort by Respondent Counsel, who may represent one or more cases, in the event of counsel's death

Although rare, there are circumstances in which a Judge may want to sort by respondent counsel. Typically this is due to the death of the respondent counsel. Currently, when this happens, the Trial Clerk manually scrolls up and down the list, visually scanning for their name to find all cases represented by that counsel. In order to find all the cases that the deceased counsel represents, it would be helpful to be able to sort in that column.

“ There are situations where you do want to sort by counsel either respondent or petitioner because sometimes it'll come up where somebody has died, counsel as died, and so you've gotten a noticed that in one of the cases counsel has died and is being replaced by other counsel. You need to find out if they are counsel in any of your other cases. A quick sort would be great for that as opposed to scrolling through, the same happens on respondent side so it would be helpful to sort by respondent as well.

User 005

Opportunities

- **How might we** explore further and consider these feature requests?

Next Steps

The insights discovered through this research effort will inform future improvements to DAWSON. By utilizing these insights to empathize with and address users' needs, we can continue to provide a great experience for all those involved in the consolidation process at USTC.

Opportunities

This report has revealed many opportunities, which will serve as a great starting point for collaborative discussions. The next step in this process will be to transform these opportunities from ideas to actionable items.

UX will continue to work closely with USTC stakeholders and Flexion team members to facilitate the prioritization of the opportunities to include the potential impact and level of effort required, as well as alignment with business goals.

“ I do love the [DAWSON] program.

User 002